

United States Senate

WASHINGTON, DC 20510

August 24, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street SW
Washington, DC 20436

Re: Comments Relating to the Public Interest, *Certain Dynamic Random Access Memory Devices, Products Containing the Same, and Components Thereof (III)*, Inv. No. 337-TA-3930

Dear Secretary Barton,

The undersigned U.S. Senators submit these comments in response to the U.S. International Trade Commission's (Commission) Solicitation of Comments Relating to the Public Interest with respect to Netlist, Inc.'s ("Netlist") Section 337 complaint against Micron Semiconductor Products, Inc., Micron Technology, Inc. (collectively "Micron") and others. We have significant concerns about the public interest implications of a potential exclusion order covering the dynamic random access memory (DRAM) devices at issue in this dispute.

First, an exclusion order could negatively impact U.S. industries that rely on a resilient supply of Micron's DRAM devices. DRAM is inexorably tied to the lives of Americans whether through use of mobile devices, laptop computers, appliances, automobiles and a host of other products used in everyday life.

To take one crosscutting example, DRAM is critical to the cloud computing ecosystem, which in turn benefits key sectors of the U.S. economy, including healthcare (e.g., access to patient records necessary to speedy and accurate treatment); manufacturing (e.g., access to supplier and logistics data necessary to functioning supply chains); entertainment (e.g., access to music and streaming services); financial (e.g., access to customer data to investigate suspicious activity); and automotive (e.g., access to technology that enhances traffic safety).

It is precisely because the articles at issue are essential to every facet of modern U.S. life that we have worked as Senators to strengthen their supply and availability. These efforts have resulted in a number of incentives to promote U.S. semiconductor production through the construction of new domestic fabrication facilities, including the tens of billions of dollars in new incentives provided in the CHIPS and Science Act to enhance domestic semiconductor research, development and manufacturing. An exclusion order would undermine Micron's financial ability to invest in domestic fabrication facilities and disincentivize such investments because the relief sought could cover imported parts and materials needed for such domestic manufacturing.

Second, an exclusion order could negatively impact U.S. national security. All major U.S. defense systems rely on semiconductors, including the articles in this investigation. Indeed, the semiconductor industry is so sensitive that the United States has employed a number of export controls against potential adversaries precisely because the technology could provide a military advantage. Limiting

U.S. access could potentially mean adversaries will have easier access to these articles since they can no longer be imported into the United States.

Third, an exclusion order could negatively impact U.S. jobs, investment and economic growth. It is our understanding that Netlist does not manufacture any of the products at issue in the U.S. Rather, Micron is the only company that fabricates semiconductor memory in the U.S—all in Manassas, Virginia. Headquartered in Boise, Idaho, Micron employs over 10,000 people in the U.S. at its operations, including in California, Colorado, Georgia, Idaho, Minnesota, Texas and Virginia.

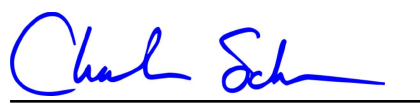
Micron announced U.S. expansion plans to invest more than \$250 billion through 2035, driven by surging demand for memory in the artificial intelligence sector. This will bring back leading-edge memory manufacturing to the U.S. by co-locating a leading-edge manufacturing fab with Micron's leading-edge R&D fab in Idaho and building a four-fab project in New York, as well as expanding the Virginia fab at a time when the global demand for memory is at an all-time high. Micron's investments alone will increase the U.S. share of the world's memory chip production from less than 2% to up to 10% over the next ten years and create up to 40,000 new jobs. In acknowledgment of the importance of this expansion, the U.S. Department of Commerce granted Micron \$6.4 billion in federal funding under the CHIPS and Science Act.

In short, Netlist's proposed remedial orders would undermine Micron's ability to invest in the domestic manufacturing of semiconductors and could place at risk Micron's announced investments in new American capacity, which is critical to modern life and our national security. Accordingly, we request the Commission ensure that the record with respect to the relevant public interest factors in this investigation be fully developed to ensure any outcome continues to support rather than undermine U.S. technological leadership.

Sincerely,



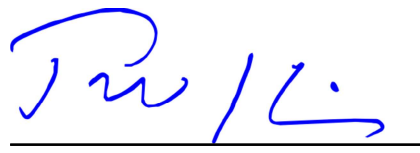
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United States Senator



Charles E. Schumer
United States Senator



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United States Senator



Tim Kaine
United States Senator



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